

TENDER DOCUMENT — RFT 9012-REF-0088

EPC CONTRACT — OFFSHORE REFINERY EXPANSION (REMOTE SITE)

1. PROJECT OVERVIEW

Project Name	Offshore Refinery Unit 4 Expansion
Location	Remote coastal site, no existing road access
Project Value	USD 42 Million
Duration	14 months from Notice to Proceed
Client	Consolidated Petrochemical Holdings

2. FINANCIAL REQUIREMENTS

- Contract Value: USD 42,000,000 (fixed price lump sum, no escalation clause)
- Payment Terms: Single payment upon full completion and client acceptance; no interim milestone payments during construction
- Retention: 15% holdback from final payment, released 18 months after project completion pending client discretion
- Performance Bond: 25% of contract value, to be provided within 5 days of award
- Payment Terms: Net 90 days from invoice date; client has history of disputed invoices

3. TECHNICAL SCOPE

3.1 Scope Includes

- Full EPC for new processing unit including marine works
- Design, procurement, and construction of subsea pipeline tie-ins
- Civil works on unconsolidated coastal fill with no prior geotechnical data

3.2 Site Conditions

- No existing road access; all materials via seasonal barge access only
- Geotechnical survey not yet performed; bidder to assume soil conditions and bear risk of unforeseen ground conditions
- Environmental zoning: protected coastal area with unresolved permitting status

3.3 Timeline

- Full EPC scope, including subsea works, to be completed in 14 months, a schedule the client acknowledges as highly aggressive relative to comparable projects
- Equipment lead times for specialized subsea components exceed 10 months, leaving effectively no float for installation or commissioning

4. EXPERIENCE REQUIREMENTS

- Minimum 20 years experience in offshore EPC construction
- Minimum 5 completed projects of comparable scale and complexity
- Minimum annual turnover USD 200 Million for last 5 years
- Bidder must hold existing marine construction license in this jurisdiction

- Project Manager: Minimum 20 years offshore EPC experience
- Minimum 5 references from completed offshore projects over USD 30 Million

5. CONTRACT TERMS AND CONDITIONS

5.1 Liability

- Contractor liability uncapped for all damages, direct and consequential
- Contractor indemnifies Client for all third-party claims without limit

5.2 Termination

- Client may terminate for convenience at any time with no notice period and no compensation for demobilization costs
- Contractor has no corresponding termination right for client payment default
- Client may issue changes unilaterally; contractor must proceed before price is agreed

5.3 Disputes

- All disputes subject to litigation in client's home jurisdiction only; contractor waives right to arbitration

6. PERFORMANCE SECURITY AND INSURANCE

- Performance Bond: 25% of contract value
- Insurance Requirements: General Liability minimum USD 50 Million per occurrence, with contractor required to self-insure marine transit risk

7. LIQUIDATED DAMAGES

- Schedule Delay Penalties: 2% of contract value per week of delay, uncapped
- Performance Shortfalls: 5% deduction per percentage point below specification, uncapped

8. EVALUATION CRITERIA

- Financial: 60%
- Technical Capability: 30%
- HSE & Compliance: 10%

DOCUMENT CLASSIFICATION: EPC CONTRACT

EXPECTED SCENARIO PROFILE: HIGH risk / DO_NOT_PROCEED